

23TRCV02851 23TRCV02851

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-25

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Case Number: 23TRCV02851 Hearing Date: August 25, 2026 Dept: E

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. E

JAN
BUILDING CO.,

Plaintiff,

Case No.:

23TRCV02851

vs.

[Tentative]
Granted

HDZ

DRYWALL AND FRAMER, INC., a California Corporation, and DOES 1 through 100,
inclusive

Defendants.

Hearing

Date: August
25, 2026

Moving Parties: Defendant HDZ Drywall and Framers Inc.

Responding Party: Plaintiff Jan Building Co.

HEARING: Motion to Compel Further Responses
to RFPs

The

Court considered the moving, opposition, and reply papers.

RULING

The Court grants the Motion
to Compel Further Responses to RFPs.

BACKGROUND

On August 29, 2023, Plaintiff Jan
Building Co. filed the Complaint against Defendant HDZ Drywall and Framer Inc.,
alleging causes of action for breach of contract and negligence.

On April 7, 2026, Defendant served
the subject discovery.

On May 7, 2026, Plaintiff served
responses.

On July 2, 2026, Defendant filed the
Motion to Compel Further Responses to RFPs.

On July 31, 2026, Plaintiff filed
the Opposition.

On August 6, 2026, Defendant filed the Reply.

LEGAL STANDARD

The propounding party may file motions to compel further responses to requests for production if it believes the responses received are (1) evasive, (2) incomplete, or (3) if the objections raised are meritless or overly general. (Code Civ. Proc., § 2031.310, subd. (a)

The burden is on the moving party to “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) This burden “is met simply by a fact-specific showing of relevance.” (TBG Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448.) In response to a motion to compel further responses, the respondent bears the burden of justifying any objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.)

DISCUSSION

Defendant requests that the Court order further responses to all 58 of Defendant RFPs.

Meet and Confer

A motion to compel must be “accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., 2031.310 subd. (a).) Section 2016.040 states that “a meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., 2016.040.)

Here, the parties met and conferred telephonically on June 5, 2026. Therefore, the Court finds that Defendant has satisfied the meet and confer requirements.

Merits

Here, the Court finds that the subject discovery requests are relevant to the Complaint and/or Cross-Complaint as they relate to the parties' practices regarding subcontractors and project administration. The Court finds that Plaintiff has failed to justify its objections. (Fairmont Ins. Co., *supra*, 22 Cal.4th 245, 255.)

Therefore, the Court grants the Motion to Compel Further Responses to RFPs.

Sanctions

Code of Civil

Procedure section 2023.030, subdivision (a) provides, in pertinent part, that the court may impose a monetary sanction on a party engaging in the misuse of the discovery process to pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. A misuse of the discovery process includes failing to respond or to submit to an authorized method of discovery. (Code Civ. Proc., § 2023.010, subd. (d).)

Defendant requests

that the Court impose sanctions on Plaintiff in the amount of \$5,835.00. While the Court finds for Defendant, it does not find that there has been any misuse of the discovery process by Plaintiff. Therefore, the Court declines to impose sanctions on Plaintiff.